

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Muhammad Shafi Siddiqui
Mr. Justice Miangul Hassan Aurangzeb

Civil Petition No. 5857 of 2024

*[Against judgment dated 22.10.2024 of the
Federal Service Tribunal, Camp Office,
Peshawar, passed in appeal No.456(P)CS
/2021]*

*Additional Director Civilian Personnel, Air
Headquarters Peshawar and others.*

... *Petitioners*

Versus

Muzafar Masih.

... *Respondent*

For the Petitioners:

Mr. Umer Aslam Khan,
Additional Attorney-General for Pakistan.
a/w Farooq Zaman, Assistant, PAF.

For the Respondent:

Mr. Muhammad Shakeel Awan, ASC.

Date of Hearing:

21.05.2026.

JUDGMENT

Muhammad Shafi Siddiqui, J. Through this petition for leave to appeal, under Article 212 (3) of the Constitution of Islamic Republic of Pakistan, 1973, the petitioners call in question the judgment dated 22.10.2024 passed by the Federal Service Tribunal, Camp Office, Peshawar, (**‘the Tribunal’**) whereby Appeal No.456(P)CS/2021 preferred by the respondent was accepted, the penalty of dismissal from service imposed upon him was set aside and consequential benefits were granted.

2. Briefly stated, the respondent was initially appointed as Skilled Trade Man (MT Fitter) on 28.08.2016 and was regularized on 27.09.2017. During service, information was received by the departmental authorities that the respondent was involved in activities wholly inconsistent with the standards

of discipline and conduct expected from an employee serving in a sensitive defence organization. The allegations included involvement in immoral activities within and outside PAF Camp Badaber, maintaining objectionable associations with women displaying indecent photographs and conduct bringing disrepute to the organization.

3. Consequently, a charge-sheet and statement of allegations dated 22.06.2020 were served upon the respondent under the Government Servants (Efficiency and Discipline) Rules, 1973. The respondent submitted a written reply. The reply having been found unsatisfactory, a formal inquiry was ordered. An Inquiry Committee comprising Squadron Leader Sajjad Hussain and Warrant Officer Abdul Majid was constituted. The record reveals that before commencement of the inquiry, the respondent was informed of his rights and privileges available under the Efficiency and Discipline Rules, 1973. Several witnesses were produced and examined in support of the allegations. The respondent remained associated with the proceedings throughout. The inquiry proceedings further reveal that the respondent was expressly afforded an opportunity to cross-examine the witnesses produced against him. However, despite being informed of such right, he consciously declined to cross-examine any witness. Consequently, the testimony of the departmental witnesses remained substantially un rebutted and unchallenged. During the inquiry proceedings, the respondent made a detailed statement before the Inquiry Committee on 04.08.2020. The statement bears his signatures and specifically records that it was made voluntarily and without any pressure or duress. In the said statement, the respondent admitted that he remained involved in immoral activities both inside and outside the Camp. He furnished details of his conduct and associations, acknowledged maintaining illicit relations with

various women and admitted facts constituting grave misconduct. The statement concluded with a categorical declaration that it was being made willingly and without coercion. Significantly, the respondent never retracted the aforesaid confession during the inquiry proceedings. Nor did he allege before the competent authority that the statement had been procured through coercion, threat, inducement or mala fide.

4. Upon completion of the inquiry, the Inquiry Committee found the allegations proved. The respondent was thereafter served with a show-cause notice proposing a major penalty. He submitted a reply and was also afforded a personal hearing before the Authorized Officer. The competent authority considered the inquiry report, statements of witnesses, confession of the respondent, reply to the show-cause notice and submissions made during personal hearing and ultimately imposed the major penalty of dismissal from service vide order dated 30.08.2021. The departmental appeal preferred by the respondent was dismissed on 14.10.2021. Feeling aggrieved, the respondent approached the Tribunal through Appeal No.456(P)CS/2021. By judgment dated 22.10.2024, the Tribunal accepted the appeal. The Tribunal principally observed that the allegations were vague in nature, that some incidents related to a period prior to the respondent's regular appointment and that no documentary evidence had been produced to conclusively establish misconduct during service.

5. Learned counsel for the petitioner contends that the Tribunal exceeded its jurisdiction by re-appraising evidence and substituting its own conclusions for those recorded by the competent authority. It is argued that the inquiry was conducted strictly in accordance with law, adequate opportunity of defence was afforded to the respondent, witnesses were examined in his presence, opportunity of cross-examination was afforded but

deliberately not availed, and the findings were further corroborated by the respondent's own confession and admissions.

6. We have heard the learned counsel for the parties and examined the record.

7. The scope of interference by the Federal Service Tribunal in disciplinary matters is by now well settled. In *Director General, Directorate General of Training and Research (Inland Revenue), Lahore*¹, this Court held that where departmental proceedings have been conducted in accordance with law and findings are supported by material available on the record, the Tribunal cannot interfere with the penalty in an arbitrary manner or substitute its own conclusions merely because another view may be possible. Likewise, in *Saboor Khan*², it was held that departmental proceedings are distinct from criminal proceedings and that once due process requirements have been satisfied, the Tribunal cannot act as an appellate forum for reassessment of evidence. Examined in the light of the above principles, we find that the inquiry in the present case was conducted strictly in accordance with law. The respondent was served with a charge-sheet, submitted a reply, participated in the inquiry proceedings, was informed of his rights under the Rules, was afforded opportunity to cross-examine witnesses, was served with a show-cause notice and was also granted personal hearing before the competent authority. No violation of any mandatory provision of law has been pointed out.

8. An equally important aspect of the matter is that the testimony of the departmental witnesses remained unchallenged. The respondent was

¹ Director General, Directorate General of Training and Research (Inland Revenue), Lahore v. Ijaz Younas (2021 SCMR 710).

² Saboor Khan v. Chairman WAPDA (2021 SCMR 667).

afforded full opportunity to cross-examine the witnesses but consciously elected not to do so. In *Mst. Nur Jehan Begum*³, this Court held that where a witness is not cross-examined on a material part of his testimony, such unchallenged statement ordinarily deserves to be accepted as true unless displaced by reliable evidence. Similarly, in *Sheraz Tufail*⁴, it was observed that where testimony remains unchallenged in cross examination, the same may legitimately be treated as admitted. More recently, in *Ishfaq Ahmed*⁵, this Court reiterated that evidence which remains unrebutted and uncontroverted due to absence of cross-examination carries full evidentiary value and may safely be relied upon by the adjudicating forum. The principle flowing from the aforesaid authorities squarely applies to the present case. The witnesses were available, opportunity of cross-examination was afforded, yet the respondent chose not to challenge their testimony. Consequently, their statements constituted relevant and reliable material before the Inquiry Committee.

9. It would be advantageous to briefly refer to the substance of the statements recorded during the inquiry. Mst. Shumaila Arif (W-1), in her statement, alleged that the respondent had taken her indecent photographs and thereafter subjected her to harassment and blackmail in relation thereto. Farzan Yaqoob (W-3) stated that the respondent had shown him an indecent picture involving the said lady, while Amir Sardar Masih (W-4) also deposed that the respondent had shown him similar indecent material. Zeeshan (W-2), Suleman Alias Sameer (W-5), Gulfam Masih (W-7), and Omair (W-6) referred to the respondent's involvement in activities of an immoral nature on different occasions. Kashan Khan (W-8), being an official witness,

³ Mst. Nur Jehan Begum through Legal Representatives v. Syed Mujtaba Ali Naqvi (1991 SCMR 2300).

⁴ Sheraz Tufail v. The State (2007 SCMR 518).

⁵ Ishfaq Ahmed v. Mushtaq Ahmed and others (PLD 2025 Supreme Court 582).

produced the inquiry proceedings on record. All these witnesses were examined in the presence of the respondent and remained unchallenged as he declined to cross-examine them. The material so brought on record, therefore, constituted relevant evidence before the Inquiry Committee.

10. Apart from the testimony of witnesses, the inquiry record contains the respondent's own signed confession dated 04.08.2020. The confession was made before the Inquiry Committee after the respondent had been informed of his rights under the Efficiency and Discipline Rules, 1973. The statement specifically records that it was made voluntarily and without pressure or duress. The respondent admitted his involvement in immoral and illicit activities and furnished details thereof. Significantly, the confession was never retracted. The respondent thereafter admitted misconduct during personal hearing and sought pardon. These admissions constituted substantive evidence and furnished an independent basis for the competent authority to conclude that the respondent had rendered himself unsuitable for retention in service.

11. We are unable to agree with the reasoning adopted by the Tribunal that the charges were unsupported by evidence. The Tribunal failed to appreciate that the findings of the Inquiry Committee were supported by: (i) oral testimony of several witnesses which remained unrebutted; (ii) the respondent's own voluntary confession; and (iii) his subsequent admissions before the competent authority. Such material clearly satisfied the requirement of "some evidence" necessary to sustain departmental findings. The Tribunal further erred in treating the absence of documentary evidence as fatal. Misconduct of the present nature is ordinarily established through oral testimony, admissions, surrounding circumstances and conduct of the

delinquent employee. The law does not require documentary proof of every allegation in disciplinary proceedings.

12. The Tribunal also attached undue significance to the fact that some incidents referred to a period prior to the respondent's regularization. The inquiry record contained material relating to conduct continuing during service.

13. We are therefore satisfied that the findings recorded by the Inquiry Committee and accepted by the competent authority were supported by ample material available on the record and cannot be characterized as arbitrary, capricious, perverse or based on no evidence. The Federal Service Tribunal exceeded the limits of its jurisdiction by reassessing the evidentiary worth of the material and substituting its own conclusions for those lawfully reached by the disciplinary authority.

14. For the foregoing reasons, this petition is converted into appeal and allowed. The impugned judgment dated 22.10.2024 passed by the Tribunal is set aside. Consequently, the order dated 30.08.2021 imposing the penalty of dismissal from service upon the respondent, as maintained in departmental appeal vide order dated 14.10.2021, is restored.

Judge

Judge

Announced in open Court on 19 June, 2026 at Islamabad.

Judge